

### Fee shifting: Complete Fee-Shifting to American

Risk preferences unchanged: moderately risk averse; cost multiplier 1

cost-timing / earlier-costs; 10 signals; 10 offers; party noise 0.2; court noise 0.2; entry cost 0.225; trial cost 0.075.

| Decision               | Signal    | Original → Target | Direct | Opponent<br>entry | Opponent<br>offers | Opponent<br>exit | Opponent<br>agreement | Remaining | Sensitive |
|------------------------|-----------|-------------------|--------|-------------------|--------------------|------------------|-----------------------|-----------|-----------|
| P files                | 0.15      | 0% → 100%         | 0      | 0                 | +100               | 0                | 0                     | 0         | No        |
| P commits to abandon   | 0.35      | 0% → 10.1%        | 0      | 0                 | 0                  | 0                | 0                     | +10.1     | Yes       |
| P demand, continue     | 0.45–0.55 | 0.15 → 0.45       | +0.70  | 0.00              | −0.40              | 0.00             | 0.00                  | 0.00      | No        |
| P demand, continue     | 0.65      | 0.85 → 0.45       | 0.00   | 0.00              | −0.40              | 0.00             | 0.00                  | 0.00      | No        |
| D answers              | 0.85–0.95 | 100% → 0%         | −100   | 0                 | 0                  | 0                | 0                     | 0         | No        |
| D offer, continue 0.15 | 0.25      | 100% → 45.5%      | 0      | +25               | −75                | +25              | +25                   | −54.5     | Yes       |
| D offer, continue 0.45 | 0.25      | 0% → 54.5%        | 0      | −25               | +75                | −25              | −25                   | +54.5     | Yes       |
| D offer, continue      | 0.35      | 0.15 → 0.45       | 0.00   | 0.00              | +0.30              | 0.00             | 0.00                  | 0.00      | No        |
| D offer, continue      | 0.45–0.55 | 0.85 → 0.45       | −0.70  | 0.00              | +0.30              | 0.00             | 0.00                  | 0.00      | No        |

Probability contributions are percentage points; pure offer changes are fractions of damages. Direct changes the rule or preferences first.

Opponent entry, offers, exit and agreement contributions average all 24 replacement orders. Their sum plus Direct and Remaining equals the endpoint change before rounding.

Remaining retains equilibrium-selection and continuation differences. Sensitive flags tie or off-path completion dependence; these are conditional diagnostics, not causal shares.

\*: an intermediate hybrid does not reach this history, although its continuation remains defined by positive opponent-and-chance reach.

## Relative-payoff changes

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Supplement to partial strategy decompositions. Gap: conditional utility of actions gaining probability minus that of actions losing probability. Positive favors the gaining side.

| Decision / comparison                         | Signal | Original  | Target | Change    | Direct/<br>reopt. | Entry    | Offers    | Exit    | Agreement | Remaining |
|-----------------------------------------------|--------|-----------|--------|-----------|-------------------|----------|-----------|---------|-----------|-----------|
| <b>Plaintiff</b>                              |        |           |        |           |                   |          |           |         |           |           |
| Commit to abandon<br>Yes vs No <sup>§</sup>   | 0.35   | -202.7897 | 0      | +202.7897 | +202.7897         | +2.2698  | -0.2455   | -0.4518 | -1.5726   | 0         |
| <b>Defendant</b>                              |        |           |        |           |                   |          |           |         |           |           |
| Offer / continue<br>0.45 vs 0.15 <sup>§</sup> | 0.25   | -115.3059 | 0      | +115.3059 | -0.024            | -12.8902 | +137.2883 | -3.1768 | -5.8914   | 0         |

All numbers on this page are 1000× utility differences (not percentages or money). The JSON/text files retain unscaled values. Mixtures weight each action by its share of the probability mass gained/lost between endpoints.

Direct/reopt.: new rule/preferences and optimized own continuation against the original opponent. Entry, Offers, Exit, Agreement: marginal opponent replacements averaged over 24 orders. Original and Target use actual endpoint continuations; any final continuation mismatch is Remaining\*. Change equals all six columns before rounding.

‡: tie-sensitive payoff allocation. §: unvisited-opponent-policy sensitivity. †: conditional on an intermediate history not reached in that hybrid. Undefined values are not zero.

These comparisons explain changes in relative incentives, not the exact equilibrium mixing probabilities or an observed dynamic path. Utility scales are convention-dependent, particularly across preference regimes, and are not cross-regime welfare comparisons.